

26STCV12924 26STCV12924

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 26STCV12924 Hearing Date: September 15, 2026 Dept: 512

HEARING DATE: Tues., September 15, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Kabba v. Towwerks, LLC COMPL. FILED: 04-22-26

CASE NUMBER: 26STCV12924 FAC FILED: 06-09-26

NOTICE: OK

PROCEEDINGS: DEMURRER AND MOTION TO STRIKE

MOVING PARTY:

Defendant Towwerks LLC dba Viertel's

Towing Service

RESP. PARTY: Plaintiff

Abdul R. Kabba

DEMURRER WITH MOTION TO STRIKE

(CCP §§ 430.10, et seq.; 435; 436)

TENTATIVE RULING:

Defendant Towwerks LLC dba Viertel's

Towing Service's Demurrer to Plaintiff's First Amended Complaint is OVERRULED

IN PART AND SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30

DAYS' LEAVE TO AMEND as to the fourth, eighth, tenth, and eleventh causes of action. The Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the fifth and eighth cause of action. The Demurrer is OVERRULED as to the second and ninth causes of action.

Defendant's Motion to Strike

Plaintiff's First Amended Complaint is DENIED.

Moving party is ordered to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITIONS: Filed

on July 15, 2026 ☐ Late ☐ None

REPLY: Filed

on August 24, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On April 22, 2026, Plaintiff Abdul R Kabba ("Plaintiff"), proceeding pro per, filed the instant action against Defendant Towwerks LLC ("Defendant") and Does 1-50.

On June 9, 2026, Plaintiff filed a First Amended Complaint ("FAC") against Defendant, alleging causes of action for Negligence, Breach of Bailee Duty, Fraud and Intentional Misrepresentation, Common Law Duress and Extortion, Violation of California Vehicle Code section 22851.3,

Unfair Business Practices, Conversion, Violation of California Penal Code section 115, Intentional Infliction of Emotional Distress ("IIED"), Negligence Per Se, and Civil Action for Treble Damages. The underlying action arises from Defendant's towing of Plaintiff's motorhome. (See FAC.)

On June 30, 2026, Defendant filed the instant Demurrer to Plaintiff's FAC (the "Demurrer") and Motion to Strike Plaintiff's FAC (the "Motion").

On July 15, 2026, Plaintiff filed an Opposition to the Demurrer and an Opposition to the Motion.

On August 24, 2026, Defendant filed a Reply to the Demurrer.

As of September 11, 2026, no Reply to the Motion has been filed.

II.
Request
for Judicial Notice

In Support of the Demurrer, Defendant requests the Court take judicial notice of an administrative record issued by the State of California Department of California Highway Patrol – namely, "State of California Department of California Highway Patrol VEHICLES REPORT (Form CHP 180) issued on December 22, 2025." (Demurrer, RJN, pp. 1-2, Exh. A.)

After reviewing the moving papers, the Court DENIES the request as irrelevant to the Court's ruling on the Demurrer.

III.
Legal
Standard & Discussion

A. Demurrer

"As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co.

(2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Meet and
Confer

Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Heller Decl.) According to the declaration, defense counsel and Plaintiff, who is proceeding pro per, met and conferred telephonically on June 22, 2026, regarding the issues raised in the Demurrer but were unable to arrive at a resolution. (Demurrer, Heller Decl., ¶¶ 2-3.)

Thus, the Court finds the meet and confer requirement is satisfied.

Analysis

Defendant demurs solely to the second, fourth, fifth, eighth, ninth, tenth, and eleventh causes of action in the FAC.

Cause of Action No. 2 – Breach of Bailee Duty

Here, the Court is unaware of a civil cause of action for “breach of bailee duty.” However, this cause of action appears in substance to be a negligence-based cause of action that states a separate duty and separate breaches than the first cause of action for negligence. Given that the Demurrer’s sole challenge to this cause of action is that it is duplicative of the first cause of action, the Court finds this argument meritless.

Thus, the Demurrer is OVERRULED as to the second cause of action.

Cause of Action No. 4 – Common Law Duress and Extortion

Here, the FAC pleads a cause of action for common law duress and extortion but fails to plead that Defendant obtained money through duress or extortion (Fuhrman v. Cal. Satellite Sys. (1986) 179 Cal.App.3d 408, 426, overruled on other grounds by Silberg v. Anderson (1990) 50 Cal.3d 205) or that Plaintiff entered into an agreement or transaction due to duress or extortion (see Tran v. Nguyen (2003) 97 Cal.App.5th 523, 529-531). (See e.g., FAC, pp. 68-69.)

Indeed,
the FAC does not plead that Plaintiff paid the fees demanded by Defendant regarding the mobilehome or consented to or entered into any agreement with Defendant regarding the mobilehome.

Thus,
the FAC fails to plead sufficient facts to plead a cause of action for civil duress or extortion.

Thus, the
Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the fourth cause of action.

Cause of Action No. 5 – Violation of
Vehicle Code section 22851.3

Vehicle Code section 22851.3 does not
provide for a civil cause of action.

Thus, the Demurrer is SUSTAINED
WITHOUT LEAVE TO AMEND as to the fifth cause of action.

Cause of
Action No. 8 – Violation of Penal Code section 115

Here, the FAC pleads a cause of action
for Violation of Penal Code section 115, which provides for the elements of a criminal felony and/or a post-conviction civil motion. The instant Court is a civil, not criminal, court, and there are no facts in the FAC stating the code section is applicable.

Thus, the
Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the eighth cause of action.

Cause of Action No. 9 – IIED

“ ‘The elements
of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional

distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.' " (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Here, the FAC alleges Defendant tampered with evidence; fabricated holds; made coercive demands; colluded with the government; "coordinated with a DMV official to defeat Plaintiff's regulatory complaint"; and "conditioned release of Plaintiff's home build on waiver of damage claims while accruing illegal storage fees." (FAC, pp. 81-82.) The FAC further states that Defendant conducted these actions while knowing "that Plaintiff was recovering from two surgical procedures to evaluate and remove potentially malignant masses." (FAC, p. 82.) As a result of Defendant's actions, Plaintiff "suffered severe emotional distress including anxiety, depression, insomnia, fear of cancer during active medical evaluation, feelings of hopelessness, and the psychological trauma of watching his life's work and path to his son being destroyed in real." (FAC, pp. 82-83.)

The Court finds the FAC, when viewed as a whole, alleges Plaintiff suffered severe or extreme emotional distress (Hailey v. California Physicians' Service (2007) 158 Cal.App.4th 452, 474-77 [finding facts supporting IIED claim where plaintiff pled resulting "depression, anxiety, and physical illness," which manifested as "vomiting, stomach cramps, and diarrhea"]), and Defendant's conduct was so extreme as to exceed all bounds tolerated in a civilized society. (See Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.)

Thus, the Court finds the FAC pleads sufficient facts to state an IIED cause of action.

Accordingly, the Demurrer is OVERRULED as to the ninth cause of action.

Cause of
Action No. 10 – Negligence Per Se

To state a claim for Negligence Per Se, the following elements must be met: (1) Defendant violated a

statute, ordinance, or regulation of a public entity; (2) that violation caused an injury or death; (3) death or injury resulted from occurrence which the law was designed to prevent; and (4) person suffering the injury or death was one of the class of persons for whose protection the law was adopted. (See *Urhausen v. Longs Drug Stores Cal., Inc.* (2007) 155 Cal.App.4th 254, 267; Evid. Code, § 669.)

Here, the FAC appears to allege a cause of action for negligence per se on page 83 although the text is embedded under the ninth cause of action subheading.

The FAC states facts alleging that Defendant violated Vehicle Code section 22851.3; Plaintiff suffered an actual injury as a result of Defendant's alleged statutory violation; and Plaintiff is within the protected class of persons for those statutes and suffered an actual injury that resulted from occurrence which the law(s) were designed to prevent. (*Urhausen, supra*, 155 Cal.App.4th at p. 267; Evid. Code, § 669.)

However, as discussed ante, the FAC fails to plead a cause of action for violation of Vehicle Code section 22851.3. The tenth cause of action fails to allege facts regarding any other statutory violation. (See FAC, pp. 83-84.)

Thus, the Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the tenth cause of action.

Cause of
Action No. 11 – Civil Action for Treble Damages

Penal Code section 496 provides
that :

Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170. However, if the value of the property does not exceed nine hundred fifty

dollars (\$950), the offense shall be a misdemeanor....

(Pen. Code, § 496, subd. (a).)

“Although section 496 defines a criminal offense, it also provides an enhanced civil remedy in the event there has been a violation of the statute—that is, where a person has knowingly received, withheld or sold property that has been stolen or that has been obtained in any manner constituting theft. The enhanced civil remedy authorized by the statute is that any party injured by the violation of section 496 may file an action for ‘three times the amount of actual damages’ sustained, and for costs of suit and reasonable attorney fees.” (Switzer v. Wood (2019) 35 Cal.App.5th 116, 119.)

“[T]he Penal Code provides that persons are guilty of theft if they (1) ‘feloniously steal . . . [or] take . . . the personal property of another’ or (2) ‘fraudulently appropriate property which has been entrusted to [them].’ The first of these definitions describes theft by larceny. . . . Importantly, larceny requires an ‘intent to steal’—in other words, ‘the intent, without a good faith claim of right, to permanently deprive the owner of possession.’ A jury instruction defining theft by larceny without the requisite specific intent is erroneous as a matter of law. . . . By leaving out any description of the defendant’s mental state, the modification effectively turned theft into a strict liability offense.’ ” (Garraabrants v. Erhart (2023) 98 Cal.App.5th 486, 504, internal citations omitted.)

“Although we are not asked here to determine whether plaintiff would have been able to prove theft, we observe that not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will amount to a theft. To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond ‘mere proof of nonperformance or actual falsity.’ ” (Siry Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 361–362, internal citation omitted.)

Here, the

FAC appears to allege a cause of action for treble damages under Penal Code section 496(a) on page 84 although the text is embedded under the ninth cause of action subheading.

However,

the FAC does not allege that Defendant bought or received the subject mobilehome in any manner constituting theft or extortion. (See Pen. Code, § 496, subd. (a).) Rather, the FAC states that Defendant's withholding of the mobilehome was unlawful. (See e.g., FAC, pp. 74-75, 84-85.) Further, the FAC fails to plead sufficient facts to demonstrate the requisite criminal intent on behalf of Defendant for this cause of action. (See *Siry Investment, L.P.*, supra, 13 Cal.5th at pp. 361-362.)

Thus, the

Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the eleventh cause of action.

B. Motion to Strike

Legal Standard

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

Code of Civil Procedure section 435.5

requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a).) (Emphasis added.)

Meet and Confer

As an initial matter, the Court finds Defendant has not satisfied the meet and confer requirement of Code of Civil Procedure section 435.5, as there is no meet and confer declaration accompanying the Motion.

Analysis

Turning to the merits of the Motion, the Court finds that the Motion's request to strike matters in the fifth, eighth, tenth, and eleventh causes of action are DENIED as moot given the Court's ruling to sustain the Demurrer as to these causes of action, discussed ante.

As to the Motion's request to strike damages for the IIED cause of action on the grounds the cause of action is insufficiently pled, this request is DENIED given that the Court overruled the Demurrer as to this cause of action.

As to the punitive damages request, there is an unchallenged cause of action for fraud in the FAC. (FAC, pp. 59-62.) Thus, there are sufficient facts to support a punitive damages request in the FAC. The Motion's request to strike punitive damages request from the FAC is DENIED.

As to the Motion's request to strike matters regarding Defendant's alleged suppression of evidence, the Court DENIES this request. The Court does not find these matters to be irrelevant, false, or improper in context of the FAC and given the nature of the FAC. (See Code Civ. Proc. §§ 435, 436.)

As to the Motion's request to strike paragraphs 8 and 35a of the FAC on the grounds Plaintiff is improperly seeking to individually recover for the entity described/named in these paragraphs, the Motion is DENIED. The Court finds these paragraphs are merely part of the general allegations portion of the FAC and not associated with any particular cause of action.

As to the Motion's request to strike reference to "gross negligence" in the first cause of action for "negligence," the Court DENIES this request. "California does not recognize a distinct cause of action for 'gross negligence' independent of a statutory basis" (see *Saenz v. Whitewater Voyages* (1990) 226 Cal.App.3d 758, 766; CACI No. 425), and a motion to strike is not the proper vehicle to challenge the sufficiency of the facts pled to support this aspect of the negligence cause of action.

As to the Motion's request to strike

all economic damages requests or attorney's fees from the FAC, the Court does not find ruling on this request to be appropriate at this time given the Court's ruling on the Demurrer.

Thus, the Motion is DENIED.

IV.

Conclusion

& Order

For the foregoing reasons, Defendant Towwerks LLC dba Viertel's Towing Service's Demurrer to Plaintiff's First Amended Complaint is OVERRULED IN PART AND SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND as to the fourth, eighth, tenth, and eleventh causes of action. The Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the fifth and eighth causes of action. The Demurrer is OVERRULED as to the second and ninth causes of action.

Defendant's Motion to Strike Plaintiff's First Amended Complaint is DENIED.

Moving party is ordered to give notice.